



## COMMERCIAL CONTRACT CONDOMINIUM ADDENDUM (Incomplete Construction)

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### ADDENDUM TO COMMERCIAL CONTRACT BETWEEN THE UNDERSIGNED SELLER AND BUYER CONCERNING THE PROPERTY AT \_\_\_\_\_

A. PROPERTY. Paragraph 2 of the contract is amended by adding the following to be included as part of the Property: the improvements, fixtures, and all other property described in the Construction Documents (the unit), the unit's undivided interest in the common elements designated by the recorded condominium declaration, including those areas reserved as limited common elements appurtenant to the unit and such other rights to use the common elements which have been specifically assigned to the unit in any other manner, including but not limited to parking and storage areas assigned to the unit, which are: \_\_\_\_\_.

B. CONDOMINIUM INFORMATION STATEMENT. "Condominium information statement" means the information described by §82.153, Texas Property Code. (Check one box only.)

- ☐ (1) Buyer has received a copy of the Condominium information statement. Buyer is advised to read the Condominium information statement before signing the contract.
- ☐ (2) Buyer has not received a copy of the Condominium information statement. Within \_\_\_\_\_ days after the effective date of the contract, Seller, at Seller's expense, will furnish Buyer the Condominium information statement. Buyer may cancel the contract before the 6th day after Buyer receives the Condominium information statement by delivering written notice of cancellation to Seller by hand-delivery or certified mail, return receipt requested.

### C. CONSTRUCTION ISSUES:

(1) CONSTRUCTION DOCUMENTS: Seller will complete all improvements to the Property with due diligence in accordance with the Construction Documents. "Construction Documents" means the Property's plans and specifications, the finish-out schedules, any change orders, and any allowances related to the plans and specifications, finish-out schedules, and change orders. The Construction Documents have been signed by the parties and are incorporated into this contract by reference.

(2) COST ADJUSTMENTS: All change orders must be in writing. An increase in costs resulting from any change orders or items selected by Buyer which exceed the allowances specified in the Construction Documents will be paid by Buyer as follows: \_\_\_\_\_.

\_\_\_\_\_ . A decrease in costs resulting from change orders and unused allowances will reduce the Sales Price, with proportionate adjustments to the amounts in Paragraphs 3A and 3B of the contract as required by any lender.

(3) BUYER'S SELECTIONS: If the Construction Documents permit selections by Buyer, Buyer's selections will conform to Seller's normal standards as set out in the Construction Documents or will not, in Seller's judgment, adversely affect the marketability of the Property. Buyer will make required selections within \_\_\_\_\_ days after notice from Seller.

(4) COMPLETION: Seller must commence construction no later than \_\_\_\_\_ days after the effective date of this contract. The improvements will be substantially completed in accordance with the Construction Documents and ready for occupancy not later than \_\_\_\_\_. The improvements will be deemed to be substantially completed in accordance with the Construction Documents upon the final inspection and approval by all applicable governmental authorities and any lender (Substantial Completion Date). Construction delays caused by acts of God, fire or other casualty, strikes, boycotts, or nonavailability of materials for which no substitute of comparable quality and price is

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available, will be added to the time allowed for substantial completion of the construction. However, in no event may the time for substantial completion extend beyond the Closing Date. Seller may substitute materials, equipment, and appliances of comparable quality for those specified in the Construction Documents.

(5) WARRANTIES: Except as expressly set forth in this contract, a separate writing, or provided by law, Seller makes no other express warranties. Seller will assign to Buyer at closing all assignable manufacturer warranties.

D. CONDOMINIUM ASSOCIATION FEES. Buyer will pay any deposits for reserves required at closing by the condominium owners' association. Any other transfer or processing fee payable to the condominium owners' association will be paid by ☐ Seller ☐ Buyer.

E. SPECIAL PROVISIONS.

**Seller:** \_\_\_\_\_

By: \_\_\_\_\_

By (signature):

Printed Name: \_\_\_\_\_

Title: \_\_\_\_\_

By: \_\_\_\_\_

By (signature):

Printed Name: \_\_\_\_\_

Title: \_\_\_\_\_

**Buyer:** \_\_\_\_\_

By: \_\_\_\_\_

By (signature):

Printed Name: \_\_\_\_\_

Title: \_\_\_\_\_

By: \_\_\_\_\_

By (signature):

Printed Name: \_\_\_\_\_

Title: \_\_\_\_\_